

9	Huynh vs. Williams 2024-01436961	1. Motion for Reconsideration 2. Case Management Conference Parties have stipulated to continue the motion to 09/14/2026 at 1:45 pm in Department C15. The Case Management Conference is hereby also continued to 09/14/2026 at 1:45 pm in C15.
10	Jin and Yu, LLC vs. Pup Pup Hooray, LLC 2024-01418427	Motion for Judgment on the Pleadings Defendants Andy Atiyeh and Lannette Atiyeh move for Judgment on the Pleadings as to Plaintiff Jin and Yu, LLC's Complaint. Although Defendants Notice of Motion states that the Motion is supported by a concurrently filed Request for Judicial Notice, no Request for Judicial Notice was filed with the Court. (See ROA 178, 181, 184.) Defendants move for judgment on the pleadings pursuant to Code of Civil Procedure section 438. <u><i>Res Judicata and Collateral Estoppel</i></u> Defendants argue res judicata and collateral estoppel bar Plaintiffs claims. This court has ruled on Defendants' arguments based on collateral estoppel and res judicata twice before. First, on 2/3/25, in ruling on Defendants' Motion to Dismiss in which Defendant argued forum non conveniens, res judicata and collateral estoppel, the court treated the motion as a general demurrer and ruled that "Defendant has failed to show that either res judicata or collateral estoppel apply." (ROA 80.) Second, on 8/11/25, in ruling on Defendants' Demurrer in which Defendants again argued res judicata and collateral estoppel, the court once again rejected these arguments finding the court had already ruled on these arguments. (ROA 138.) This is the third time Defendants argue res judicata and collateral estoppel. Code of Civil Procedure section 438, subdivision (g) provides "The motion provided for in this section may be made even though either of the following conditions exist: (1) The moving